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番号：27/2017JBAV 号　　2017 年 9 月 18 日

ベトナム社会主義共和国
財政省　御中

「付加価値税法、特別消費税法、企業所得税法、個人所得税法、資源税法に修正・追加に関する税法案」についての意見書

ベトナム日本商工会
会長　辛島　裕

日頃より日本商工会に対するご理解、ご支援に心よりお礼申し上げます。さて、2017 年 8 月 18 日に受領いたしました「付加価値税法、特別消費税法、企業所得税法、個人所得税法、資源税法の修正・追加に関する税法案」につきまして、以下のとおり意見書を提出させていただきますので、ご検討いただければ深甚です。

1. 経済特区に所在する企業で勤務する個人の個人所得税

＜条文　第 4 条 3 項＞

3. Revising and updating Article 5, Personal Income Tax Law No. 04/2007/QH12, as follows:

"Article 5. Tax cut

1. Taxpayers who are in

financial distress as a result of disasters, fires, accidents and terminal illnesses that may affect their ability to pay taxes may be considered for a tax cut, corresponding to the degree of related sufferings, but not in excess of the tax liabilities.

2. A 50% reduction of the personal income tax liability is granted for income from salary or wages of individuals who are hi-tech professionals working in the information technology sector, income from salary or wages of individuals who are hi-tech professionals in agriculture and agroprocessing, belonging to projects applying high technology, projects making hi-tech products named in the list of high technologies targeted for investment and development and list of hi-tech products targeted for

investment promotion.
The government is tasked with providing details on individuals who are hi-tech professionals eligible for a 50% reduction of personal income tax as specified in this paragraph.

3. Income of foreign workers employed by support programs and projects financed by official development assistance (ODA) funds; foreign workers employed by foreign non-governmental programs and projects in Vietnam; Vietnamese nationals working in representative offices of international organizations in the United Nations system in Vietnam in line with the Prime Minister's current rules."

上記条文に記載されておりませんが、"EXPLANATORY NOTE"の中で、下記の記載がありました。

At the same time, we also recommend removal of PIT reduction rules applicable to individuals working in economic zones under the current rules to maintain coherence of the law system.

2014年9月5日付の通達128号（Circular 128/2014/TT-BTC）において、経済特区に所在する企業で勤務する個人の個人所得税を50%減税することが規定されています。

経済特区に既に進出している企業や進出を検討している企業は、個人所得税50%減税を織り込んで事業計画を作成しております。また、ベトナム進出の意思決定時において、個人所得税50%減税は事業費用を予測する上で、大きな影響があります。かかる減税を織り込んで進出している企業にとって、減税の撤廃は受け入れ難い変更です。経済特区における減税は既得の権利であり、既に進出している企業はこの権利を維持できるよう配慮頂きたい。

課税の公平性は十分理解しておりますが、法的安定性は事業運営上、極めて重要な要素であり、この点も考慮して頂きたい。

2. 中小企業への法人所得税率優遇

＜条文　第3条5項＞

5. Amendments and updates to Articles 10.2, Corporate Income Tax Law No. 14/2008/QH12,

which was revised and updated in Article 1.7, Corporate Income Tax Law No. 32/2013/QH13, as follows:

"2. Businesses with an annual gross revenue of less than VND 3 billion are subject to a 15% tax rate.

Businesses with an annual average staff size with social security of less than 200 people, and meeting the requirement of having an annual total revenue of VND 3 billion – VND 50 billion are subject to a 17% tax rate.

The revenue used to define whether a business is subject to the 17% or 15% specified in this paragraph is the gross earnings of the business in the year.

The 17% and 15% rates specified in this paragraph do not apply to businesses incorporated in a parent-daughter company relationship, where the parent company holds 25% or more of the daughter company's equity.

中小企業に対する法人所得税率優遇に関して、25%以上の持分を他の会社によって所有されている中小企業は対象外とされていますが、当該規定は外国法人が 25%以上を所有する場合にも適用されるのか否かが明確ではありません。

所有比率に制限を設ける理由は、ベトナム国内で不当な価格操作により税率の低い企業への所得移転を防止するための規定であると理解しております。外国法人が直接 25%以上の持分を有する場合、ベトナム国内において不当な所得移転が生じる余地はなく、仮に持分を保有する外国法人との間に営業取引がある場合は、移転価格税制で対処されるべきものであります。外国法人が直接 25%以上の持分を所有する中小企業は優遇税率を適用できるようご配慮頂きたい。

3. 仕入付加価値税の損金処理

＜条文　第 3 条 3 項＞

3. Amendments and updates to Articles 9.1, Corporate Income Tax Law No. 14/2008/QH12, which was revised and updated in Article 1.5, Corporate Income Tax Law No. 32/2013/QH13 and Article 1.3, Law No. 71/2014/QH13, as follows:

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"1. With the exception of the expense items referred to in paragraph 2 of this Article, businesses may deduct any expenses when determining their taxable income if they meet the following criteria:

a) Expenses actually incurred related to businesses' commercial activities; spending on vocational education activities; spending on the national defense and security tasks assigned to businesses in accordance with applicable laws;

b) Expenditure backed by adequate invoices or supporting documents as required by law. For invoices of one-time purchases of goods and services with amounts of VND 10 million or more, supporting documents for non-cash payment shall be obtained, unless such non-cash payment supporting documents are otherwise not required in accordance with prevailing laws.

c) Value added tax not entirely deducted but not qualified for tax rebates shall be accounted for as deductible expenses".

上記 c)において、控除できず、還付要件を満たさない仕入付加価値税に関して、損金処理できると読めますが、控除できない仕入付加価値税を翌期以降に繰り越すか、損金処理するかどうかは、企業の判断に基づき、任意に選択できることを確認させて頂きたい。

4. 支払利息損金算入の上限額

＜条文　第 3 条 4 項＞

4. Addition of a (q) to Articles 9.2, Corporate Income Tax Law No. 14/2008/QH12, which was revised and updated in Article 1.5, Corporate Income Tax Law No. 32/2013/QH13, as follows:

"q) Debt servicing expenses pertaining to loans that exceed 05 times the owners' equity (5:1) for manufacturing, and 04 times the equity (4:1) for the remaining lines of business; for financial institutions and banks alone, this ratio must not exceed 12 times the equity; for specific sectors, lines of business and businesses for which laws and regulations exist providing on the minimum equity to total investment capital ratio, such laws and regulations shall apply."

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過少資本税制導入に伴い、資本金の一定倍率を超える部分の借入金に係る支払利息は損金算入できないとなっております。一方、2017年2月24日付の政令20号(Decree 20/2017/ND-CP)では、支払利息・減価償却費考慮前営業利益（EBITDA）の20%を超える支払利息は損金算入できないと規定されています。支払利息の損金算入限度額に関して、2つの上限ルールが併存するのは好ましくないと考えます。過少資本税制導入により、支払利息の損金算入上限額を設定されるのであれば、その上限内にある支払利息は事業運営上、適正なものであるとし、本法案が施行されるタイミングで、政令20号における損金算入上限規定を削除して頂きたい。

最後になりますが、ベトナムの社会経済の発展のため、ベトナムで操業している日系企業の代表として日本商工会は引き続き努力していく所存ですので、今後ともご支援賜りますようよろしくお願い申し上げます。

ベトナム日本商工会　会長

HIỆP HỘI CÁC DOANH NGHIỆP NHẬT BẢN TẠI VIỆT NAM
BAN LÃNH ĐẠO

辛島　裕

写）　計画投資省　外国投資庁
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